

JUDICIAL REVIEW TRAINING MANUAL

Australia & New Zealand — Visa Refusal Challenges

For Pakistan-based Case Team · Self-Represented Clients

A to Z practical training: procedure, forms, drafting templates, jurisdictional error grounds, and a full worked scenario case.

Audience	Immigration case officers / junior lawyers / client support team (Pakistan)
Objective	After this training, the team can prepare and guide a self-represented client through AU/NZ JR filing end-to-end.
Client model	Client is self-represented at all stages . Team drafts / coaches; client signs and files in own name.
Level	Practitioner-grade (15+ years litigation / migration judicial review experience)
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CRITICAL DISCLAIMER: This manual is educational training material for internal team capacity-building. It is **not legal advice** to any client. Laws, forms, fees, and court practice directions change. Always verify against the current FCFCOA / Federal Court of Australia / NZ High Court / Immigration and Protection Tribunal websites before filing. Where a matter is complex (character, national security, detention, removal urgency), urge the client to obtain admitted counsel in AU/NZ.

1. TABLE OF CONTENTS

2. Training Outcomes & How to Use This Manual
3. The Golden Rule: Merits Review vs Judicial Review
4. Decision Map — What Stage Is the Client At?
5. AUSTRALIA — End-to-End Judicial Review
 - 5.1 Pathway before court (Department → ART)
 - 5.2 Court jurisdiction (FCFCOA Div 2 / Federal Court)
 - 5.3 Time limits & extension of time
 - 5.4 Grounds — jurisdictional error catalogue
 - 5.5 Documents to file & serve
 - 5.6 Step-by-step filing checklist (self-rep)
 - 5.7 Hearing preparation & after judgment
6. NEW ZEALAND — End-to-End Judicial Review
 - 6.1 Pathway before court (INZ → IPT)
 - 6.2 ss 247 & 249 Immigration Act 2009
 - 6.3 Leave applications & High Court JR
 - 6.4 Step-by-step filing checklist (self-rep)
7. SCENARIO CASE — Full Worked File (AU + NZ notes)
8. COMPLETE DRAFTING TEMPLATES (fillable)
9. FORMS DIRECTORY & OFFICIAL LINKS
10. Team SOPs, Ethics & Quality Control
11. Quick Reference Cards
12. Training Assessment Checklist

2. TRAINING OUTCOMES & HOW TO USE THIS MANUAL

By the end of this session, every team member must be able to:

- Explain in plain English what judicial review can and cannot do for a refused visa applicant.
- Identify the correct forum, respondent, and deadline for an AU or NZ refusal from Pakistan.
- Spot arguable **jurisdictional errors** (not mere disagreement with the outcome).
- Draft the core court documents for a self-represented client (application, affidavit / statement of claim, chronology).
- Assemble the court book / evidence index and a service pack.
- Coach the client on filing, service, case management, and hearing etiquette as a self-represented litigant.
- Know when to stop and escalate (hopeless case / conflict / removal risk).

Team role vs client role: *The client is the litigant. The client signs affidavits, appears at hearing (or by video if permitted), and is responsible to the Court. The Pakistan team prepares drafts, evidence packs, and checklists; does **not** hold out as an Australian or New Zealand lawyer unless admitted and authorised.*

3. THE GOLDEN RULE: MERITS REVIEW VS JUDICIAL REVIEW

Question	Merits Review (ART / IPT)	Judicial Review (Court)
What is asked?	Was the decision the correct or preferable one on the facts?	Was the decision made lawfully ?
Can court/tribunal grant the visa?	Tribunal may remake the decision (within power).	No. Court usually sets aside and remits.
New evidence?	Often yes (rules vary).	Generally only if relevant to legal error.
Typical outcome if win	Visa granted or remitted with fresh look.	Decision quashed → remitted to decision-maker.
If you only say “the decision was unfair / wrong”	May be enough if facts support.	Not enough. Need jurisdictional error.

PRACTITIONER WARNING

Most self-represented JR applications fail because they argue the case as if it were a second merits appeal. Train every client to say: **“The decision-maker made a legal error. Here is the error. Here is where it appears in the reasons.”**

4. DECISION MAP — WHAT STAGE IS THE CLIENT AT?

AUSTRALIA (typical offshore / onshore Pakistan pathway)

- **Stage A:** Department of Home Affairs refusal → check if ART review rights exist and deadline (often 21 or 28 days depending on decision type / location — **verify the refusal letter**).
- **Stage B:** Administrative Review Tribunal (ART) Migration & Refugee Division affirms refusal → **this is the usual JR target**.
- **Stage C:** File JR in Federal Circuit and Family Court of Australia (Division 2) within **35 days** of the migration decision date.
- **Stage D (limited):** Some decisions (e.g. certain character / Ministerial) may start in Federal Court — check Migration Act s 476A.

NEW ZEALAND

- **Stage A:** Immigration New Zealand (INZ) decline.
- **Stage B:** Appeal to Immigration and Protection Tribunal (IPT) **where available** — often mandatory before JR (s 249).
- **Stage C:** After IPT final determination → apply to High Court for **leave** to bring JR (usually within **28 days** of notification) under s 249.
- **Stage D:** Where the matter is **outside** IPT jurisdiction, JR may proceed under s 247 (28 days; extension must generally be sought within that period).

Team SOP: On intake, complete the Decision Map worksheet (Section 11) before drafting a single court document.

5. AUSTRALIA — END-TO-END JUDICIAL REVIEW

5.1 Pathway before court

Almost every Pakistan-based student, partner, visitor, or skilled refusal that reaches JR has already been through Department → ART. JR attacks the **ART decision** (or other reviewable migration decision), not simply “I disagree with Home Affairs.”

5.2 Court jurisdiction

- **Primary court:** Federal Circuit and Family Court of Australia (Division 2) — migration JR under Migration Act s 476.
- **Respondent:** Usually the Minister for Immigration and Citizenship / Home Affairs (title as current on refusal / ART decision). Name the Minister correctly from the decision cover page.
- **Relief:** Writs in the nature of certiorari / mandamus / prohibition / declaration / injunction (as available under the Act and Constitution).
- **What Court will NOT do:** Re-weigh evidence, grant the visa, or act as a general appeal.

5.3 Time limits & extension of time

Item	Rule of thumb (verify)	Team action
JR filing deadline	Within 35 days of the date of the migration decision	Diary Day 0 = decision date on ART/decision record
Late filing	Court may extend time if marked on application + explained in affidavit	Draft extension grounds: delay explanation, prejudice, merits, public interest
ART merits deadline	Printed on refusal — often short	Never skip ART if rights exist and time remains
Bridging visa / status	Separate from JR	Client must manage status; JR does not automatically grant stay

5.4 Grounds — jurisdictional error catalogue

Train the team to plead **specific** grounds with paragraph references to the ART reasons:

Ground (short name)	What it means	Evidence / proof tip
Failure to consider a relevant consideration	Ignored a claim, integer of claim, or mandatory criterion	Show claim was made + not addressed in reasons
Irrelevant consideration	Took into account something forbidden / extraneous	Show the irrelevant matter actually affected the outcome
Wrong question / misconstruction of statute	Misapplied Migration Act / Regulations / Direction	Compare statute text to what Tribunal said it asked
Procedural fairness / natural justice	No meaningful opportunity to respond to adverse info	Show surprise material + no invitation to comment
Legal unreasonableness	Outcome / process lacks evident justification (high bar)	Use sparingly; build from primary errors
No evidence / illogical fact finding	Critical finding with no evidence or irrational leap	Pinpoint the finding and the missing evidence
Bias / prejudgment (actual or apprehended)	Fair-minded observer might think mind closed	Rare; need clear conduct record
Failure to warn / apply policy correctly	Bound Direction / PAM applied wrongly	Extract Direction clauses vs reasons

Pleading discipline: Prefer 2–4 strong grounds over 12 weak ones. Each ground = (1) legal principle, (2) where Tribunal erred, (3) why it was material.

5.5 Documents to file & serve (FCFCOA Div 2 — usual first instance)

- **Originating Application – Migration Act** (current FCFCOA form — download from fcfcOA.gov.au; do not use obsolete templates).
- **Affidavit** of the Applicant (facts, chronology, extension if needed) with annexures:
 - ART decision and reasons (full)
 - Department refusal (if relevant)
 - Key evidence that proves the legal error (not a full re-hearing dump)
 - Passport bio page / identity
- **Filing fee** or fee exemption / reduction application (financial hardship forms as current on Federal Court / FCFCOA fee pages).
- After filing: **serve** the Minister (usually via Australian Government Solicitor / service address notified by Registry — follow sealed copy instructions).

If the matter is in Federal Court original jurisdiction (rare for ordinary ART MRD decisions), use **Form 70** (Originating application for review of a migration decision) under Federal Court Rules r 31.22 — confirm jurisdiction first.

5.6 Step-by-step filing checklist (self-represented client)

Step 1. Day 0–2: Receive ART decision. Extract decision date. Calculate Day 35. Open case file.

Step 2. Day 1–5: Error conference — team marks up ART reasons with highlighters: ignored claim / wrong test / procedural fairness.

Step 3. Day 3–10: Draft Originating Application grounds + Affidavit + annexure index. Client reviews.

Step 4. Day 10–14: Client signs affidavit before authorised witness (rules vary — typically JP / lawyer / authorised person; if client in Pakistan, use method accepted by Court for overseas affidavits — check current practice note).

Step 5. Before Day 35: File electronically via Commonwealth Courts Portal / Registry instructions. Pay fee or lodge exemption.

Step 6. +1–7 days after filing: Serve sealed documents on Minister. File Affidavit of Service.

Step 7. Case management: Diary directions hearing. Prepare Court Book / List of Authorities if ordered.

Step 8. Outline of Submissions: Short, page-limited, ground-by-ground. Attach authorities list.

Step 9. Hearing: Client appears (in person / AVL as directed). Speak to grounds; answer Judge's questions; do not re-argue visa merits.

Step 10. Judgment: If successful → remittal. Prepare remittal pack for ART. If dismissed → advise appeal prospects to Full Court / Federal Court (strict timelines).

5.7 Hearing preparation & after judgment

- Prepare a 1-page 'oral roadmap' for the client: Ground 1 (60 seconds), Ground 2, Ground 3, materiality.
- Authorities: 3–6 key cases max for self-rep (e.g. classic High Court statements on jurisdictional error — update list annually).
- Costs risk: explain that unsuccessful applicants may face costs orders.
- Remittal: winning JR is not a visa grant — rebuild ART case properly.

6. NEW ZEALAND — END-TO-END JUDICIAL REVIEW

6.1 Pathway before court

INZ declines many temporary and residence applications from Pakistan. Where an appeal right to the **Immigration and Protection Tribunal (IPT)** exists, that path usually comes **before** judicial review.

6.2 Immigration Act 2009 — ss 247 and 249 (team must master this)

Provision	When it applies	Practical effect
s 249	Decision (or its effect) could be appealed to IPT	Must complete IPT first. JR only with leave of High Court (or CA if HC refuses). Leave app usually within 28 days of IPT notification.
s 247	Review of statutory power of decision under the Act where s 249 does not force the IPT-first path	JR as of right if filed within 28 days of notification; extension generally sought within the 28 days.
Leave test (s 249)	Issues not adequately dealt with on IPT appeal + of general/public importance or other reason	Draft leave around discrete legal issues, not merits re-run.

*Wrong pathway = strike-out / leave refused. Always ask: **Could this have been appealed to IPT?** If yes, has IPT finished? Then leave + JR.*

6.3 Documents (High Court — self-rep)

- **Statement of Claim** (judicial review) — parties, decision under challenge, grounds, relief.
- **Notice of Proceeding** (High Court Rules Form G2 content).
- **Affidavit(s)** in support (exhibits: INZ decision, IPT decision, key documents).
- Where s 249 applies: **Interlocutory application for leave** + supporting affidavit + draft statement of claim.
- Filing fee (check Ministry of Justice current fees). Hardship / fee waiver pathways if available.
- Service on the respondent (typically Minister of Immigration / Attorney-General as required).

6.4 Step-by-step filing checklist (self-represented)

NZ Step 1. Confirm whether IPT appeal existed and was exhausted.

NZ Step 2. Diary 28-day leave / JR clock from notification date (keep envelope / email header proof).

NZ Step 3. Identify 1–3 reviewable legal issues for leave (s 249) or JR grounds (s 247).

NZ Step 4. Draft leave application + affidavit + proposed statement of claim.

NZ Step 5. Client swears affidavit in NZ-acceptable form (overseas oaths — follow High Court / NZ consular practice).

NZ Step 6. File in correct High Court registry; pay fee.

NZ Step 7. Serve respondents; file affidavit of service.

NZ Step 8. Attend leave hearing if required; if leave granted, proceed on the issues stated by the Court.

NZ Step 9. Substantive JR hearing → judgment → remittal / dismissal → advice on Court of Appeal.

7. SCENARIO CASE — FULL WORKED FILE

7.1 Fact pattern (training scenario — fictional)

Client: Ms Ayesha Khan, Pakistani national, currently in Lahore.

Application: Australia Subclass 500 Student visa (offshore).

Course: Master of Information Technology, private institute in Melbourne.

Department: Refused for failure to satisfy Genuine Temporary Entrant (GTE) / Genuine Student criteria (as framed in the decision record — training uses GTE language as in classic refusals).

ART: Affirmed refusal on 2 June 2026. Decision date on cover: **2 June 2026**. Reasons allege: (a) career progression not logical; (b) weak home ties; (c) failed to consider updated employment letter and property documents that were validly before the Tribunal after a post-hearing direction.

Client goal: Self-represented JR in FCFCOA Div 2. Pakistan team prepares drafts.

7.2 Error analysis (what we plead)

- **Ground 1 — Failure to consider relevant material:** ART failed to engage with the 15 May 2026 employer letter and property documents lodged in response to Tribunal direction (integer of home ties claim).
- **Ground 2 — Procedural fairness:** ART relied on an adverse inference about 'unexplained career change' drawn from LinkedIn printout never put to Applicant for comment.
- **Ground 3 (alternative) — Misconstruction / wrong test:** ART assessed 'permanent migration intention' as determinative contrary to the correct Genuine Student / GTE framework requiring evaluative assessment of all circumstances.
- **Materiality:** Each error could realistically have resulted in a different decision on home ties / intention.

7.3 Deadline calculation

Decision date: 2 June 2026 → Day 35 = **7 July 2026**. File on or before that date. Team internal deadline: drafts locked by 30 June 2026; client swearing 2–3 July; e-file 4 July.

7.4 Evidence index (Court Book lite)

Tab	Document	Purpose
A	ART Decision & Reasons (2 Jun 2026)	Decision under review
B	Department refusal record	Background
C	Applicant passport bio page	Identity
D	Tribunal direction (1 May 2026) + lodging email (15 May 2026)	Proves material was before ART
E	Employer letter + property docs (15 May pack)	Relevant material not considered
F	Hearing transcript / audio extract (if available)	PF / LinkedIn issue
G	LinkedIn printout used by ART (if in reasons/file)	Adverse material

7.5 NZ parallel note (same facts adapted)

If this were an NZ student decline affirmed by IPT on similar 'bona fide student' reasoning with ignored post-hearing documents, the pathway would be: confirm IPT exhausted → within 28 days file **leave under s 249** focusing on failure to consider relevant evidence and natural justice — not a re-argument of study plans.

8. COMPLETE DRAFTING TEMPLATES (FILLABLE)

Copy into Word, replace [BRACKETED] text. Have client sign where indicated. Always align captions with current Court form fields.

TEMPLATE A — AU Originating Application grounds (insert into current FCFCOA Migration Act form)

IN THE FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA (DIVISION 2)
AT [REGISTRY e.g. MELBOURNE]

File number: [to be allocated]

AYESHA KHAN
Applicant

MINISTER FOR IMMIGRATION AND CITIZENSHIP
Respondent

ORIGINATING APPLICATION – MIGRATION ACT
(Judicial review of a migration decision)

1. The Applicant applies for judicial review of the decision of the Administrative Review Tribunal made on 2 June 2026 affirming the refusal of a Subclass 500 Student visa (the Decision).
2. The Applicant seeks:
 - (a) an order that the Decision be quashed;
 - (b) an order that the matter be remitted to the Tribunal (differently constituted) for determination according to law;
 - (c) such further or other order as the Court thinks fit;
 - (d) costs.

GROUND OF APPLICATION

Ground 1 – Failure to consider relevant considerations / relevant material

3. The Tribunal constructively failed to exercise jurisdiction by failing to consider relevant material that was before it, namely the Applicant's employer letter dated 15 May 2026 and supporting property documents lodged on 15 May 2026 in response to the Tribunal's direction, which went to the Applicant's home ties / intentions integer of the Genuine Student / GTE assessment.

Ground 2 – Denial of procedural fairness

4. The Tribunal denied the Applicant procedural fairness by relying on adverse information / inferences drawn from a LinkedIn profile printout (referred to at [xx] of the Reasons) without giving the Applicant a meaningful opportunity to comment.

Ground 3 – Misconstruction of the applicable legal test (in the alternative)

5. The Tribunal misconstrued / misapplied the applicable Genuine Student / GTE criteria by treating an asserted desire for long-term career mobility as determinative of failure, rather than evaluating all circumstances as required by law / the applicable Ministerial Direction.
6. Each error was material in the sense that there is a realistic possibility of a different outcome if the error had not been made.

Extension of time (only if needed)

7. [If filing after Day 35:] The Applicant seeks an extension of time because [reasons: late receipt / illness / waiting for reasons / impecuniosity / arguable case / no prejudice].

Prepared by: [Name of person who prepared the application]
Applicant signature: _____ Date: _____

TEMPLATE B — AU Affidavit of Applicant (structure)

AFFIDAVIT

I, Ayesha Khan, of [address], Lahore, Pakistan, [occupation], affirm / swear:

1. I am the Applicant. I make this affidavit from my own knowledge except where otherwise stated.
2. I am a citizen of Pakistan. A copy of my passport biodata page is annexed and marked "AK-1".
3. On [date] I applied for a Subclass 500 Student visa to study [course] at [institution].
4. On [date] a delegate of the Minister refused the visa. A copy is annexed "AK-2".

5. I applied to the Administrative Review Tribunal for review. On 2 June 2026 the Tribunal affirmed the refusal. The Decision and Reasons are annexed "AK-3".
6. On 1 May 2026 the Tribunal directed me to provide further documents about employment and assets. On 15 May 2026 I lodged an employer letter and property documents. Copies of the direction, lodging email, and documents are annexed "AK-4", "AK-5", and "AK-6".
7. I have read the Reasons. The Reasons do not engage with the 15 May 2026 employer letter or property documents when discussing home ties / intentions at paragraphs [xx]-[yy].
8. At the hearing / in the Reasons the Tribunal referred to a LinkedIn printout. I was not given that printout before the Decision or invited to comment on the adverse inference at [zz].
[Attach transcript extract if available – "AK-7".]
9. I seek the relief in the Originating Application. I believe the Tribunal made jurisdictional errors as set out in the Grounds.
10. [Extension of time facts if any.]
11. Except as stated, I have not received legal advice from an Australian lawyer. I am self-represented. This affidavit was prepared with drafting assistance from [organisation], who are not acting as my Australian legal representatives on the Court record.

AFFIRMED / SWORN at [place] on [date]

Before me: [qualified witness – name, capacity, seal]

Signature of deponent: _____

TEMPLATE C — AU Outline of Submissions (hearing)

OUTLINE OF SUBMISSIONS OF THE APPLICANT (SELF-REPRESENTED)

- A. Introduction (1 page max)
 1. Decision under review; date; relief sought.
 2. Real issues: Grounds 1-3.
- B. Ground 1 – Failure to consider relevant material
 3. Legal principle: Tribunal must consider relevant material / integers of claims.
 4. Evidence: Tabs D-F (direction; lodging; documents).
 5. Reasons silence at [xx]-[yy].
 6. Materiality: home ties was a decisive adverse finding.
- C. Ground 2 – Procedural fairness
 7. Principle: adverse information from third-party source must be put.
 8. LinkedIn use at [zz]; no opportunity to comment.
 9. Materiality.
- D. Ground 3 – Misconstruction (alternative)
 10. Correct test vs Tribunal's approach at [aa].
- E. Orders sought
 11. Quash + remit + costs.

Authorities (short list): [insert 3-6 current authorities]

TEMPLATE D — NZ Application for Leave (s 249) — skeleton

IN THE HIGH COURT OF NEW ZEALAND
[REGISTRY] REGISTRY
CIV-[year]-[number]

UNDER the Immigration Act 2009 and the Judicial Review Procedure Act 2016
IN THE MATTER of an application for leave to commence review proceedings under s 249

BETWEEN [FULL NAME]
Applicant

AND MINISTER OF IMMIGRATION
Respondent

INTERLOCUTORY APPLICATION FOR LEAVE TO BRING REVIEW PROCEEDINGS

To: The Registrar of the High Court at [city]
And: The Respondent

This document notifies you that –

1. The Applicant will on [date] apply for orders:
 - (a) granting leave under s 249 of the Immigration Act 2009 to bring review proceedings in respect of the Immigration and Protection Tribunal decision dated [date] in [IPT reference];
 - (b) directing that the issues for review be:
 - Issue 1: Whether the Tribunal failed to consider relevant evidence lodged on [date] regarding [topic];
 - Issue 2: Whether the Tribunal breached natural justice by relying on [adverse material] without giving the Applicant an opportunity to comment;
 - (c) costs.
2. The grounds are:
 - (a) the proposed review issues could not be adequately dealt with in the IPT appeal process as determined, because they concern legality / process errors;
 - (b) the issues are of general or public importance / ought to be submitted for review because [brief reasons – e.g. recurring IPT approach; clear arguable error; significant consequences];
 - (c) the application is made within 28 days of notification of the IPT determination (notified on [date] – proof annexed).
3. The application is made in reliance on ss 247 and 249 Immigration Act 2009, the Judicial Review Procedure Act 2016, and the affidavit of [Name] dated [date].

Date: _____ Signature of Applicant: _____

TEMPLATE E — NZ Statement of Claim (Judicial Review) — skeleton

STATEMENT OF CLAIM

Parties

1. The Applicant is [name], a citizen of Pakistan, of [address].
2. The Respondent is the Minister of Immigration, sued in respect of the decision of the Immigration and Protection Tribunal dated [date] (the Decision).

Decision under challenge

3. On [date] the Tribunal dismissed the Applicant's appeal against INZ's decline of a [visa type] application.

Grounds of review

4. Error of law / failure to consider relevant considerations: The Tribunal failed to consider [identify documents and paragraphs].
5. Natural justice: The Tribunal relied on [material] without giving the Applicant an opportunity to respond.
6. Unreasonableness (if truly available on facts): [plead narrowly].

Relief

7. An order setting aside the Decision;
8. An order remitting the matter to the Tribunal for reconsideration;
9. Costs.

Date: _____ Signature: _____

TEMPLATE F — Affidavit of Service (AU/NZ common structure)

AFFIDAVIT OF SERVICE

I, [Name], of [address], [occupation], say:

1. On [date] at [time] I served the Respondent with the following documents:
 - (a) sealed Originating Application / Notice of Proceeding;
 - (b) Affidavit of [Applicant] sworn [date] with exhibits;
 - (c) [any other].
2. Service was effected by [personal service / email to nominated address / post – as permitted] at [address / email].
3. Annexed "S-1" is proof of service ([email delivery receipt / courier tracking / acknowledgment]).

Signature / witness jurat as required.

TEMPLATE G — Client coaching script (15 minutes)**COACHING SCRIPT – SELF-REPRESENTED JR CLIENT**

- 1) "The Court will not grant your visa. We are asking the Court to check if the Tribunal followed the law."
- 2) "Your three errors are: [1], [2], [3]. Memorise them."
- 3) "If the Judge asks why the Tribunal was wrong on the facts, answer: 'That is a merits point. My case is the legal error at paragraph [xx].'"
- 4) "Bring passport, sealed documents, Court Book tabs, and a bottle of water."
- 5) "Address the Judge as 'Your Honour'. Stand when required. Do not interrupt counsel for Minister."
- 6) "If you do not know an answer: 'I am self-represented; may I take a moment to find the page?'"
- 7) "After judgment, call us the same day. Do not post about the case on social media."

9. FORMS DIRECTORY & OFFICIAL LINKS

Australia

Item	Where to get it	Notes
Originating Application – Migration Act	fcfcoa.gov.au → Migration → I want to apply	Primary form for Div 2 JR
Affidavit form / rules	FCFCOA forms + Federal Circuit and Family Court Rules	Annex decision + reasons
Fee exemption / reduction	Federal Court / FCFCOA fees pages	Financial hardship evidence
Form 70 (Federal Court)	fedcourt.gov.au forms (FCA Form 70)	Only if FCA original jurisdiction
Commonwealth Courts Portal	portal instructions on court sites	E-filing for self-rep
ART decision access	ART online account / decision letter	Keep PDF + covering email

New Zealand

Item	Where to get it	Notes
Statement of Claim / Notice of Proceeding	justice.govt.nz — representing yourself in High Court	Follow High Court Rules formats
Form G2 content (Notice of Proceeding)	High Court Rules	JR respondent notice
IPT appeal forms	justice.govt.nz / IPT pages	Exhaust before s 249 JR
Leave application	Interlocutory application + affidavit	28-day clock critical
Judicial Review Procedure Act 2016	legislation.govt.nz	Procedural backbone
Immigration Act 2009 ss 247, 249	legislation.govt.nz	Mandatory reading

FEE WARNING

Court filing fees change. Never rely on a fee figure printed in old training notes. Check the live fees schedule on filing day. Fee waiver / exemption may be available for impecunious self-represented applicants.

10. TEAM SOPs, ETHICS & QUALITY CONTROL

10.1 Intake SOP (same day)

- Collect: passport, refusal, ART/IPT decision+reasons, complete Department/INZ file if held, hearing recording/transcript request status, bridging/visa status, removal/deportation risk flags.
- Complete Decision Map worksheet.
- Conflict check + engagement letter stating: drafting assistance only; client self-represented; no AU/NZ practising certificate held by Pakistan team (unless true).
- Diary hard deadlines in shared calendar with two reminders (T-10 and T-3).

10.2 Quality gate before client swears

- Second lawyer reviews grounds for 'merits dressed as JR'.
- Every ground has a pinpoint paragraph reference to reasons.
- Annexures paginated and labelled.
- Extension of time facts complete if late.
- Client understands costs risk and remittal outcome.

10.3 Ethics red lines

- Do not fabricate evidence or coach false testimony.
- Do not file hopeless JR solely to delay removal without frank advice on prospects.
- Do not hold out as Australian / NZ solicitors / migration agents if not licensed.
- If client is in immigration detention or faces imminent removal — escalate immediately; consider urgent injunction advice from local counsel.

11. QUICK REFERENCE CARDS

Card 1 — Decision Map Worksheet (print & fill)

Client: _____ Country: Pakistan
Visa subclass / type: _____
Department / INZ decision date: _____
Tribunal (ART / IPT) decision date: _____
Notification date (email/post proof): _____
JR / Leave deadline calculated: _____
Forum: ☐ FCFCOA Div 2 ☐ Fed Court ☐ NZ HC leave (s249) ☐ NZ HC JR (s247)
Respondent correct name: _____
Top 3 alleged jurisdictional errors:
1. _____
2. _____
3. _____
Status / bridging / deportation risk: _____
Self-rep confirmed (client signs): ☐ Yes
Reviewer sign-off: _____

Card 2 — AU 35-day countdown

Day 0 = decision date on ART record → add 35 days → filing deadline. If reasons arrive later, deadline still usually runs from decision date — do not wait passively; seek reasons urgently.

Card 3 — NZ 28-day countdown

Day 0 = date client notified of IPT (or other) decision → 28 days for leave / JR. If extension needed under s 247, application for extension generally must be made before the 28 days expire.

12. TRAINING ASSESSMENT CHECKLIST

Team lead signs off when each member can perform the following without assistance:

#	Competency	Pass?
1	Explain JR vs merits review to a client in under 3 minutes	☐
2	Calculate AU 35-day and NZ 28-day deadlines from sample letters	☐
3	Choose correct AU forum (FCFCOA vs FCA) for a sample decision	☐
4	Choose correct NZ path (s 249 leave vs s 247 JR) for a sample decision	☐
5	Mark up ART reasons and draft 2 jurisdictional error grounds with pinpoints	☐
6	Assemble affidavit annexure list and service pack	☐
7	Role-play 10-minute self-rep oral submissions using Scenario Case	☐
8	Identify a hopeless 'merits only' case and write frank advice note	☐
9	Locate current forms/fees on official websites (live demo)	☐
10	Complete Scenario Case file to filing-ready standard (peer reviewed)	☐

APPENDIX — SCENARIO CASE FILING-READY CHECKLIST

- ☐ Originating Application grounds final (Templates A)
- ☐ Affidavit sworn/affirmed (Template B) with Tabs A–G
- ☐ Fee paid or exemption lodged
- ☐ E-filing receipt saved
- ☐ Service on Minister completed + Affidavit of Service (Template F)
- ☐ Directions hearing diary note
- ☐ Outline of Submissions draft (Template C)
- ☐ Client coaching completed (Template G)
- ☐ Remittal contingency plan filed in CMS

END OF MANUAL — TRAINER NOTES

Recommended delivery: Day 1 (theory + AU) 3 hours; Day 2 (NZ + scenario drafting workshop) 3 hours; Day 3 (mock hearing + assessment) 2 hours. Update forms/fees quarterly. Maintain a shared folder of successful anonymised precedents. For live cases with removal risk, brief admitted AU/NZ counsel.

© Training material for internal professional development. Verify all procedure against official sources before filing.